

Court No. - 2

Case :- WRIT - C No. - 11144 of 2010

Petitioner :- Kannu Lal

Respondent :- State Of U.P. Thru. P.S. Electricity Dept. & Ors.

Petitioner Counsel :- Janmed Kumar

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Heard counsel for the petitioner.

By this writ petition, the petitioner has prayed for quashing the electricity bill/notice dated 19th February, 2008 sent by the respondents.

Learned counsel for the petitioner submits that bill is incorrect and of a load, which was never sanctioned to the petitioner.

Under the U.P. Electricity Supply Code, 2005, there is statutory remedy of challenging the bill issued by the electricity department. The petitioner may avail the statutory remedy as provided in the U.P. Electricity Supply Code, 2005. Learned counsel for the petitioner submits that representation of the petitioner be directed to be decided. When statutory remedy is provided, we see no reason to issue any direction for deciding the representation, which is not referable to any statutory provision.

With the aforesaid observation, the writ petition is dismissed.

Order Date :- 9.3.2010

Rakesh